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Environmental Working Group: California Bill Would Create First-in-nation 'Not Ultraprocessed Food' Label for Consumers

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WASHINGTON, March 26 -- The Environmental Working Group issued the following news release:

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California bill would create first-in-nation 'not ultraprocessed food' label for consumers

SACRAMENTO - A trailblazing California bill would give shoppers a way to identify less harmful processed foods.

Assembly Bill 2244, introduced March 24 byAssemblymember Jesse Gabriel (D-Encino), aims to create a first-of-its-kind state certification program for products that are not ultraprocessed food, or UPF. If enacted, the bill would establish a new "California Certified" seal for non-UPF.

"Parents shouldn't need a Ph.D. in chemistry to understand what they're feeding their kids," said Gabriel.

"AB 2244 will empower consumers with clear, trustworthy information and make it easier for them to locate healthier foods that are free from harmful additives. This new seal doesn't limit consumer choice, it just makes informed choice possible," he added.

The Environmental Working Group is co-sponsoring the bill. The Assembly Committee on Health will hear the bill in mid-April.

A new standard for healthier food

Under AB 2244, the California Department of Public Health, or DPH, would oversee a certification system allowing approved, independent agents to verify which products meet the state's UPF standards and qualify to use the California Certified label.

California last September enacted AB 1264, a landmark law by Gabriel setting the first U.S. legal definition of UPF. Under the law, known as the Real Food, Healthy Kids Act, food is considered UPF if it is high in saturated fat, added sugar or sodium and contains a food additive such as flavor, color, emulsifier or a thickening agent. The law also tasks DPH with identifying UPF "of concern" to phase out from schools' food.

AB 2244 would not let products carry the California Certified non-UPF label if they are classified as UPF. They'd also be disqualified if they were already on the list of foods restricted in public schools in the state.

Certified products would be required to undergo recertification at least every three years. The state would create a standardized label bearing the phrase "California Certified Not Ultraprocessed Food Standard."

Only products that meet these requirements could display the seal.

"This is about setting a higher bar for what we consider healthy food," said Bernadette Del Chiaro, EWG senior vice president for California.

"Consumers deserve labels they can trust. And families deserve a simple way to tell which foods are closer to what comes from a kitchen rather than a factory.

"If enacted, the bill would establish a state-verified seal for foods free from the additives, emulsifiers, food dyes and flavors that define the modern American diet," she added.

Bringing transparency and accountability to the food system

The bill includes strong oversight and transparency measures:

* Certification agents must register with the state and disclose all certified products

* The state can audit certification records at any time

* The state would maintain a public, online list of certified products

* Misuse of the label would be illegal and subject to enforcement

These provisions are designed to ensure the label remains credible.

Making healthier choices easier in stores

In addition to creating the label, the bill would require large food retailers to make certified "not ultraprocessed" products more visible within the store.

If a grocery store sells more than 25 non-UPF-certified products and has more than $10 million in annual sales overall, it would be required to display California Certified products prominently, for instance, at checkout or store entrances.

Addressing the rise of ultra-processed foods

Ultra-processed foods are industrially manufactured, chemically modified products that are often filled with harmful additives to enhance taste, texture, appearance and shelf life.

These foods make up more than two-thirds of children's diets and more than half the typical adult diet in the U.S.

Experts say ultra-processed food and drinks are engineered to trick people into consuming more of them than they want, especially soda.

Scientific research has linked diets high in UPF to serious health harms, including cancer, heart disease, Type 2 diabetes, metabolic disorders (such as Crohn's disease and fatty liver disease) and mental health issues.

Obesity is chief among the health problems linked to UPF. Rates of obesity in the U.S. and globally have skyrocketed in tandem with the rising consumption of ultra-processed foods.

Help for consumers

Despite these concerns, the U.S. offers consumers no clear, standard labeling system to help them identify UPF.

With federal regulators slow to update oversight of food additives and processing, states are increasingly taking action to protect public health.

AB 2244 builds on California's leadership in addressing harmful food chemicals and improving transparency for consumers. It would direct the state health department to accredit third-party certification agents, no later than June 1, 2028, to evaluate and certify products as California Certified.

"Consumers genuinely want to avoid ultra-processed foods, but the reality is, it's nearly impossible to tell what's what when you're standing in a grocery aisle trying to make a quick decision," said Maria Menounos, Emmy Award-winning journalist and actress.

"We've created a system where even the most well-intentioned shopper can't easily distinguish between ultra-processed foods and healthier processed options. That confusion isn't helping anyone live better, it's just holding people back.

"That's why I believe a voluntary non-UPF seal could be a game changer. Something simple, clear and trustworthy that helps busy consumers instantly identify better choices without needing a nutrition degree. It's about meeting people where they are and making health feel accessible, not complicated," she added.

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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Original text here: https://www.ewg.org/news-insights/news-release/2026/03/california-bill-would-create-first-nation-not-ultraprocessed

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